

**HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR**

S.B. Civil Writ Petition No. 15756/2019

Mukeshi W/o Prakash Chand, Aged About 27 Years, R/o Muliya Ka Pura, Gram Post Baragama, Tehsil Hindaun City, District Karauli.

-----Petitioner

Versus

1. State Of Rajasthan, Through Principal Secretary, Rural Development And Panchayati Raj Department, Secretariat, Jaipur.
2. Divisional Commissioner, Bharatpur.
3. Dy. Secretary Cum Dy. Commissioner (Enquiry), Rural Development And Panchayati Raj Department, Secretariat, Jaipur.
4. Chief Executive Officer, Zila Parishad, Karauli (Raj.)
5. Block Development Officer, Panchayat Samiti Hindaun District Karauli (Raj.)
6. Saroj Jatav W/o Shri Lakhan Singh Jatav, Aged About 26 Years, R/o Village Baragama, Tehsil Hindaun City, District Karauli (Raj.)

-----Respondents

For Petitioner(s)	:	Mr. Sanjay Joshi, Adv. Mr. Banvari Lal Saini, Adv.
For Respondent(s)	:	

HON'BLE MR. JUSTICE ASHOK KUMAR GAUR

Order

26/09/2019

The instant writ petition has been filed by the petitioner challenging the order dt.03.09.2019 whereby the suspension order dt.08.08.2018 of the respondent No.6-Saroj Jatav/Sarpanch of Gram Panchayat Bargama, Panchayat Samiti Hindaun City, has been revoked.

Mr. Sanjay Joshi, counsel for the petitioner submitted that the respondent No.6 was involved in a criminal case No.583/2017 and the Court of Additional Civil Judge & Judicial Magistrate No.1, Hindustan City framed charges against the said respondent under Sections 196, 198, 200, 199, 420, 467, 468, 471 & 193 IPC read with Section 125A of the Representation of the People Act, 1951. Counsel submitted that on charges being framed against the respondent No.6, she was placed under suspension vide order dt.08.08.2018 and the petitioner being elected as Panch of the Gram Panchayat Bargama, was given charge on the post of Sarpanch and she continued to discharge her duties as Sarpanch.

Counsel submitted that the impugned order dt.03.09.2019 revoking the suspension order, has been passed on a wrong premise. Counsel submitted that the private respondent had challenged the order-sheet dt.05.01.2018 before the Appellate Court (ADJ No.1, Hindustan City) by filing a revision petition No.185/2018.

Counsel submitted that the Revisional Court by setting aside the order dt.05.01.2018, has remanded the matter back to the competent criminal court and the Court is to pass order on framing of charges after considering the relevant material and as per law after hearing the parties, fresh order will be passed by the criminal court.

Counsel submitted that the respondent No.6 in the very unusual manner did not challenge order of framing charge which has been annexed as Annex-1 with the petition. Counsel submitted that only order-sheet dt.05.01.2018 was challenged and as such the State Government has revoked the suspension order by giving reference of order passed by the Revisional Court.

Counsel submitted that the order of framing charge against the petitioner, where she denied the charge and wanted the trial to be conducted, could be challenged on specific grounds and no interference could have been made even by the Revisional Court in criminal revision against order-sheet.

Counsel further submitted that the order-sheet dt.05.01.2018 in fact does not frame any charge and the order has been only to the extent of reference of charge being framed under Section 125A of the Representation of the People Act, 1951.

Counsel submitted that had the authorities applied their mind to the entire facts of the case, the suspension order of the respondent could not have been revoked.

I have heard counsel for the petitioner and perused the material available on record.

This Court finds that the order of framing charge dt.05.01.2018 filed as annex.2 with the petition, refers to the fact of framing of charge against the respondent No.6 and she has further denied the charge and wanted the trial to be conducted. The order dt.05.01.2018 once having been assailed and set aside by the Revisional Court and the matter being remanded back to the Criminal Court, the order of framing charge is no more in existence against the private respondent and as such the Government considering this fact, has revoked the suspension order dt.08.08.2018 and has further reinstated the respondent No.6 on the post of Sarpanch.

This Court finds little substance in the submission of counsel for the petitioner that the order-sheet dt.05.01.2018 was only in respect of drawing the proceedings and until substantial order of framing charge was challenged, no interference could have been

Accordingly, the Court does not find any force in the present writ petition and the same is dismissed.

(ASHOK KUMAR GAUR),J

Ashish Kumar/Solanki PS DS/9



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